

26CHCV00506 26CHCV00506

County: los-angeles

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Case Number: 26CHCV00506 Hearing Date: July 9, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 9, 2026

MOTION TO EXPUNGE

LIS PENDENS

Los Angeles Superior Court Case # 26CHCV00506

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Motion Filed: 4/24/26

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MOVING PARTY: Defendants Val-Chris Investments, Inc.;

The Glenn And Carrie Donahue Revocable Trust; Glenn Donahue, and Carrie Donahue
(collectively, "Moving Defendants")

RESPONDING PARTY: Plaintiff

Domenique Chantel Thola, as Trustee of the Valley Ranch Family Living Trust,

dated March 20, 2023 (“Plaintiff”)

NOTICE: OK

RELIEF REQUESTED: An

order expunging the Notice of Pendency of Action (Lis Pendens) recorded by Plaintiff on 2/11/26.

TENTATIVE RULING: The unopposed motion is granted. Moving Defendants are awarded \$1477.50 in attorney fees and costs.

REQUEST FOR JUDICIAL NOTICE: Moving Defendants’

request for judicial notice is granted as to the existence, but not the contents, of Exhibits 2–7, 9–11, and 16. Moving Defendants’ request for judicial notice is denied as to Exhibits 1, 8, and 12–15.

BACKGROUND

“This case arises from an elaborate fraud and breach of trust orchestrated by now-indicted real estate agent Federico Jorge Triebel IV in collusion with mortgage lender Val Chris Investments, Inc. Triebel sold the valuable 16515 Valley Ranch Road property to Juan Carlos Thola for \$2.6 million in 2021, intending it as a gift for JC Thola's daughter (Triebel's goddaughter) Dominique Thola. At the time, JC Thola requested that title be placed in a trust for Dominique’s benefit. Instead, Triebel deeded the property into a revocable trust under his control—naming himself as trustee and giving his own son a contingent benefit—while failing to pay off the existing mortgages on the property at the time of acquisition. Triebel and Val Chris conspired to misappropriate the \$2.6 million purchase money rather than using it to clear the loans: Val Chris agreed to assign the old deeds of trust to Triebel's self-serving trust instead of reconveying them, allowing both to pocket the sale proceeds and leave the prior liens intact. They also colluded on a \$390,000 “construction loan” from Val Chris in late 2021 that was never invested into the property. Through these actions, Defendants saddled the property with fraudulent debt while diverting the funds meant to pay those debts, all at the expense of the true beneficiary, Dominique. Triebel, acting as

trustee, then stonewalled Dominique—refusing to provide trust accountings or transfer title—and after being federally indicted for fraud, he attempted with Val Chris to inflate the loan payoffs and “short-sell” the property at a discount for their benefit.” (Compl. ¶ 1.)

Moving Defendant Val Chris Investments, Inc.

(“VCI”) is a mortgage lender “being sued for its role in the fraudulent scheme and its continuing assertion of lien interests adverse to Plaintiff’s title.” (Id. at ¶ 4.) Moving Defendants “The Glenn and Carrie Donahue Trust, its trustees Glenn Donahue and Carrie Donahue, are trustees of a private trust (or related IRA accounts managed by Glenn and Carrie Donahue) that VCI used as an assignee for the \$390,000 ‘construction’ loan.” (Id. at ¶ 6.)

On 12/18/24, Plaintiff filed her complaint, alleging against Triebel and Moving Defendants the following causes of action: (1) Fraud – Intentional Misrepresentation; (2) Fraud – Civil Conspiracy; (3) Breach of Fiduciary Duty; (4) Aiding and Abetting Breach of Fiduciary Duty; (5) Quiet Title; (6) Cancellation of Instruments; (7) Unjust Enrichment; (8) Constructive Trust; (9) Injunctive Relief; (10) Declaratory Relief; and (11) Accounting.

“The Department of Justice, Triebel (as the then trustee of the Valley Ranch Family Living Trust), and the Val-Chris Defendants entered into an agreement whereby the Department of Justice would sell the Property and the net proceeds would first go to pay off the senior and junior loans, then the balance would go to reimbursing the victims of Triebel and Juan Carlos Thola’s criminal activities.” (Defs.’ Mot. 5:17–21.)

Thereafter, on 3/19/26, Moving Defendants foreclosed on the property, and “The Donahue Trust has obtained a buyer for the Property, willing to pay \$2,600,000 for the Property as is, and was in the process of opening a 30 day escrow when it learned of the existence of the lis pendens for the first time on March 26, 2026 when Plaintiff’s counsel sent a face page for the recording to the real estate broker who had listed the Property for sale. Plaintiff never served the lis pendens on any of the Val-Chris Defendants—let alone prior to recording--and does not appear to have filed it with this Court, both violations of CCP § 405.22.” (Id. at 6:15–20.)

On 4/24/26,

Moving Defendants filed the instant motion to expunge lis pendens and request for judicial notice. No opposition has been filed to date.

ANALYSIS

Any party, or a non-party having an interest in the property affected by a notice of lis pendens, may move for expungement any time after the lis pendens is recorded. (Code Civ. Proc., § 405.30.) A lis pendens must be removed for being improper on account of (a) the pleading on which the notice is based not containing a real property claim, assuming the allegations to be true, or (b) the claimant not being able to establish by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., §§ 405.31, 405.32; *Ziello v. Superior Court* (1995) 36 Cal.App.4th 321, 331–332; *Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149.)

Here,

Moving Defendants argue that “the central premise of the claims against the Val-Chris Defendants is based on the knowingly false contentions that Val-Chris and the Donahue Trust had any knowledge of the putative intent/agreement of Triebel that the Property was to be acquired for the benefit of Plaintiff ... made any misrepresentations to Plaintiff, or owed any duty to Plaintiff.” (Defs.’ Mot. 7:8–12.)

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A.

Nature of Claim

A real property claim lies where the causes of action, if proven, would affect either: (a) title to or the right to possession of specific real property, or (b) the use of an easement identified in the pleading. (Code Civ. Proc., § 405.4.) In determining whether a real property claim has been asserted, the Court engages in a demurrer-like analysis. (*Park 100 Investment Group II, LLC v. Ryan* (2009) 180 Cal.App.4th 795, 808.) “Review ‘involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer.’” (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 648.)

Here, Moving Defendants argue that Plaintiff’s first, second, third, fourth, seventh, eighth, and eleventh causes of action “do

not affect title to or possession of real property but rather seek monetary damages for wrongs supposedly committed against Plaintiff.” (Def.’s Mot. 7:22–24, citing BGJ Associates, LLC v. Superior Court (1999) 75 Cal.App.4th 952, 970–972; Campbell v. Superior Court (2005) 132 Cal.App.4th 904, 912–922.) Moving Defendants therefore assert that “the only potential real property claims even attempted to be alleged by the Complaint are the Fifth Cause of Action for Quiet Title, the Sixth for Cancellation of Instruments, and the Ninth for Declaratory Relief.” (Defs.’ Mot. 8:6–8.)

B.

Probable Validity of Claim

When questioning the evidentiary merit of a claim, the claimant who filed the lis pendens has the burden of proof. (Code Civ. Proc., § 405.30.) Thus, that claimant, in opposing the motion to expunge the lis pendens, must demonstrate the following: (1) the action affects title to or right of possession of the real property described in the notice; (2) insofar as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim by a preponderance of the evidence. (Hunting World, 22 Cal.App.4th at 70; Code Civ. Proc., § 405.30 et seq.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) Here, Moving Defendants argue that Plaintiff’s fifth, sixth, and ninth causes of action lack probable validity.

Here, Moving Defendants argue that “Plaintiff does not allege that she made any actual tender, or satisfied or discharged the debt. This omission is fatal.” (Defs.’ Mot. 8:14–16, citing Lueras v. BAC Homes Loans Servicing, LP (2013) 221 Cal.App.4th 49, 86 [“A borrower may not, ... quiet title against a secured lender without first paying the outstanding debt on which the mortgage or deed of trust is based.”].) “Here, Plaintiff just attacks the rights of the Val-Chris Defendants under the Senior and Junior deeds of trust against the Property by making wholly unsupported and unsupportable conclusions that their security interests are voidable as a result of supposed fraudulent conduct and breaches of fiduciary duty.” (Id. at 8:20–23.)

Moving Defendants argue that Plaintiff's claims lack probable validity because she fails to allege her fraud claims with the requisite specificity. (Id. at 8:24–9:6.)

Moving Defendants further argue that they “were not parties to any agreement between Triebel and Juan Carlos Thola as to the Property and did not know of any agreement between them concerning the Property nor of any agreement to place the Property into a trust at the time the Senior and Junior Loans were made and assigned.” (Id. at 9:17–20.) Furthermore, Moving Defendants assert that “the Complaint is bereft of any factual allegations as to any misappropriation or improper retention of any loan proceeds by any of the Val-Chris Defendants” (Id. at 10:4–6.)

The Court notes that Plaintiff has failed to file any opposition to the instant motion. Based on the foregoing, the Court finds that Plaintiff has failed to meet her burden to prove the probable validity of her claims against Moving Defendants. Accordingly, the motion is granted.

C.

Service

“Immediately following recordation, a copy of the notice [of lis pendens] shall also be filed with the court in which the action is pending. Service shall also be made immediately and in the same manner upon each adverse party later joined in the action.” (Code Civ. Proc. § 405.22.)

“Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action.” (Code Civ. Proc. § 405.23.)

Here, the Court notes that Plaintiff failed to file any notice of lis pendens with the Court as required by statute. Accordingly, the motion is granted on this additional basis.

D. Attorney Fees

Code of Civil Procedure section 405.38 provides that “the court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the

motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.)

Here, Moving Defendants seek to recover \$10,880.25 in attorney fees and costs against Plaintiff and her attorney, encompassing: (1) 17.9 hours of Moving Defendants' attorney's time spent on meet and confer efforts and preparing the instant motion; and (2) an anticipated 5 hours reviewing the opposition, drafting a reply, and appearing at the hearing, at counsel's hourly rate of \$472.50 per hour. (Decl. of Jonathan D. Fink ¶ 5.) Moving Defendants also seek to recover \$60.00 in filing fees. (Ibid.)

In granting the instant unopposed motion, the Court finds it reasonable to award Moving Defendants \$1477.50 in attorney fees and costs.

CONCLUSION

The unopposed motion is granted. Moving Defendants are awarded \$1477.50 in attorney fees and costs.